

Historical and theoretical/ philosophical dimensions of human rights

Human rights” is one of the most important concepts in our modern era. Activists, governments, and corporations use it to draw on a collective understanding that all people deserve certain rights and freedoms. No matter who a person is, where they’re from, what they believe, or how they live, everyone has rights that cannot be taken away.

Dignity refers to the state of being worthy of esteem or respect. A person with integrity will be honest and follow a strict moral code. A person with dignity will behave in respectful manner and will treat people with dignity.

The concept of human rights.

Human rights are commonly understood as inalienable fundamental rights to which a person is inherently entitled simply because she or he is a human being. Human rights are commonly understood as being those rights which are inherent in the mere fact of being human. The concept of human rights is based on the belief that every human being is entitled to enjoy her/his rights without discrimination. Human rights are characterized as being:

1. Inherent in all human beings by virtue of their humanity alone (they do not have, e.g., to be purchased or to be granted);
2. Inalienable (within qualified legal boundaries);
3. Equally applicable to all and Indivisible, interrelated and interdependent.
4. Human rights are basic entitlements or minimum standards to be met for individuals to live with dignity.

Various schools of thought govern what amounts to a human right and what doesn’t.

a. Natural school of thought;

The belief that there is a certain standard of virtue of being human. It is quite similar to religion but it cuts out God. (Aristotle)

b. Positivism. Law sometimes results from morality. The sovereign then enacts this in the law. Whatever is not provided for in the law does not create a human right. I.e. a human right is one prescribed by law.

c. Utilitarianism.

Utility is the aggregate rule. “I am because we are and we are because I am.” We have

our rights for as long as they are not against the common good. (Read Hart or Rose)

d. Libertarianism



That rights are individual. For example, where utilitarianism would argue that the right of a woman to abort is against the rest of the society since it prevents self-preservation,

libertarians would argue that the woman's body is hers and she has a right to decide what to do with it.

E.universality v relativism

Universality denotes something that is the same throughout whereas relativism bases on the

particular social standards of a place. For example people's argument that in Uganda the police cannot be perfect is relative of Uganda but it's not a universal argument.

Relativism was forwarded by Anthropologist Franz Boaz "The Mind of a Primitive man" that human rights come from culture and are not universal. For example international customary law.

Thomas Aquinas claims that Human Rights are inherent and applies to everyone. For rights to be universal, it is crucial for them to conform to the cultural needs. Human rights are dynamic and how they are practiced to some extent is due to the political, social and economic development. However, the fact that some societies, culturally abuse rights does not make it right.

The universality of human rights has been, and still is, a subject of intense debate, including in anticipation of, during and after the **1993 World Conference on Human Rights**. The Vienna document itself states that the universal nature of human rights is 'beyond question'. It also says: 'all human rights are universal'; adding, however, that 'the significance of national and regional particularities and various historical, cultural and religious backgrounds must be borne in mind'.

This national 'margin of appreciation', as it is called, does not, however, according to the Vienna document, relieve states of their duty to promote.

The early origins of human rights

Human society didn't always believe in universal human rights the way we do now. The first recorded example of anything close to human rights comes from **Cyrus the Great**, a Persian king. When he conquered Babylon, he established a set of basic rights for everyone. We can find those rights, which include freedom from slavery and freedom of religion, written on a clay

cylinder now housed in the British Museum far from its original home. "**Natural**

law” was also discussed in ancient Greece and Rome. Natural law eventually expanded to the idea of “natural rights.” **The Magna Carta**, which became an official part of English law in 1297, represents a major milestone for rights like due process and equality under the law. Centuries later, the Bill of Rights from the United States lay another road map to modern human rights.

Bill of Rights talked about freedom and dignity, they meant privileged groups such as land- owning white men. Even as the concept of rights expanded to include more people, exclusion continued. The right to vote is a good example. In the United States, the 19th Amendment (1920)



gave women the right to vote, but racial discrimination and violence hampered the ability of both Black men and women to exercise this right. True voting rights for all did not become reality until 45 years later.

Human rights in the current era

Our modern understanding of human rights first entered the scene after **World War II**. The new United Nations formed a committee in 1945 and wrote a **Universal Declaration of Human Rights**. This formalized the concept of universal human rights, as well as the role governments must play in protecting and providing them. Other documents followed, such as the International Covenant on Civil and Political Rights, International Covenant on the Elimination of All Forms of Racial Discrimination, and Convention on the Rights of the Child. Many constitutions and regional charters include rights from international instruments, such as freedom of speech, freedom of religion, and the right to a fair trial. These instruments are necessary to enforce human rights law.

The protection of human rights is irrevocably woven into peace and development. According to entities like the United Nations, sustainability, peace, and freedom are impossible without human rights. Linking basic rights to security and stability in this way is a major feature of our modern understanding of human rights.

What's considered a "human right?" The UN breaks them down into five types in the International Covenant on Economic, Social, and Cultural Rights and International Covenant on Civil and Political Rights. Economic, social, and cultural rights include:

1. Classic and Social Rights

One classification used is the division between 'classic' and 'social' rights. 'Classic' rights are often seen to require the non-intervention of the state (negative obligation), and 'social rights' as requiring active intervention on the part of the state (positive obligations). In other words, classic rights entail an obligation for the state to refrain from certain actions, while social rights oblige it to provide certain guarantees. Lawyers often describe classic rights in terms of a duty to achieve a given result ('obligation of result') and social rights in terms of a duty to provide the means ('obligations of conduct')

The evolution of international law, however, has led to this distinction between 'classic' and 'social' rights becoming increasingly awkward. Classic rights such as civil and political rights often require considerable investment by the state. The state does

not merely have the obligation to respect these rights, but must also guarantee that people can effectively enjoy them. Hence, the right to a fair trial, for instance, requires well-trained judges, prosecutors, lawyers and police officers, as well as administrative support. Another example is the organization of elections, which also entails high costs.



On the other hand, most 'social' rights contain elements that require the state to abstain from interfering with the individual's exercise of the right. As several commentators note, the right to food includes the right for everyone to procure their own food supply without interference; the right to housing implies the right not to be a victim of forced eviction; the right to work encompasses the individual's right to choose his/her own work and also requires the state not to hinder a person from working and to abstain from measures that would increase unemployment; the right to education implies the freedom to establish and direct educational establishments; and the right to the highest attainable standard of health implies the obligation not to interfere with the provision of health care.

In sum, the differentiation of 'classic' rights from 'social' rights doesn't sum, the differentiation of 'classic' rights from 'social' rights does not reflect the nature of the obligations under each set of rights.

2. Civil, Political, Economic, Social and Cultural

Rights Civil rights

The term 'civil rights' is often used with reference to the rights set out in the first eighteen articles of the UDHR, almost all of which are also set out as binding treaty norms in the International Covenant on Civil and Political Rights .

From this group, a further set of 'physical integrity rights' has been identified, which concern the right to life, liberty and security of the person, and which offer protection from physical violence against the person, torture and inhuman treatment, arbitrary arrest, detention, exile, slavery and

servitude, interference with one's privacy and right of ownership, restriction of freedom of movement, and the freedom of thought, conscience and religion. The difference between 'basic rights' and 'physical integrity rights' lies in the fact that the former include economic and social rights, but do not include rights such as protection of privacy and ownership. Although not strictly an integrity right, the right to equal treatment and protection in law certainly qualifies as a civil right. Moreover, this right plays an essential role in the realization of economic, social and cultural rights.

Another group of civil rights is referred to under the collective term 'due process rights'. These pertain, among other things, to the right to a public hearing by an

independent and impartial tribunal, the 'presumption of innocence', the ne bis in idem principle and legal assistance

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Political rights

In general, political rights are those set out in **Articles 19 to 21 of the UDHR** and also codified in the ICCPR. They include freedom of expression, freedom of association and assembly, the



right to take part in the government of one's country, and the right to vote and stand for election at genuine periodic elections held by secret Economic and social rights

The economic and social rights are listed in **Articles 22 to 26 of the UDHR**, and further developed and set out as binding treaty norms in the International Covenant on Economic ,Social Cultural Rights . These rights provide the conditions necessary for prosperity and wellbeing. Economic rights refer, for example, to the right to property, the right to work, which one freely chooses or accepts, the right to a fair wage, a reasonable limitation of working hours, and trade union rights. Social rights are those rights necessary for an adequate standard of living, including see Articles 6 to 14 of the rights to health, shelter, food, social care, and the right to education.

Cultural rights

The UDHR lists cultural rights in **Articles 27 and 28**: the right to participate freely in the cultural life of the community, to share in scientific advancement, and the right to the protection of the moral and material interests resulting from any scientific, literary or artistic production of

Who is responsible for protecting human rights?

The Universal Declaration of Human Rights says that “every individual and every organ of **society**” must play a role. That includes teaching about human rights, promoting them, and establishing measures that protect them. Individuals and businesses bear responsibility, but the government has the primary duty.

When a government ratifies a human rights treaty, they are agreeing to do three things: respect, protect, and fulfill human rights. To respect human rights, governments cannot take away (or interfere with) a human right. The government must also protect rights and stop private actors (like corporations) from violating them. Lastly, to fulfill human rights, a government must provide education, food, housing, access to healthcare, and so on.

For centuries, leaders and politicians of all states, even those who do not respect human rights themselves, have cited the Declaration and recognized its values, in spite of current widespread violations of human rights norms across the globe. Articles of national Constitutions worldwide resemble that of the Declaration, often incorporating many of the rights inherent therein. As such, the Declaration had, and still has a remarkable impact on today's societies and states.

Human rights are at the core of international law and international relations. They represent basic values common to all cultures, and must be respected by countries worldwide. Human rights are inalienable fundamental rights to which a person is inherently entitled simply because he or she is a human being. **The principle of equality and non-discrimination, as stipulated in Article 2 of the Declaration, is the cornerstone of the human rights protection system, enshrined in every human rights instrument, stipulating that;** “Everyone is entitled to all the rights and freedoms set forth in this Declaration, without distinction of any kind, such as race, colour, sex,



language, religion, political or other opinion, national or social origin, property, birth or other status. Furthermore, no distinction shall be made on the basis of the political, jurisdictional or international status of the country or territory to which a person belongs, whether it be independent, trust, non-self-governing or under any other limitation of sovereignty.“

In this section the concept of human rights from its origins to the broad interpretation given to it today will be discussed. First, the concept of human rights is introduced as well as general elements of international law, including the application of principles of human rights law. The emphasis is further laid on three major dimensions: standards (the human rights norms as defined in internationally agreed texts); supervision (the mechanisms to monitor compliance with human rights standards); and the ways in which respect for human rights is put into practice.

CONCEPTUALISATION OF HUMAN RIGHTS THE UNITED NATIONS CHARTER

When states become members of the UN they accept the obligations of the UN Charter that sets out the four main purposes of the UN: to maintain international peace and security; to develop friendly relations among nations; to co-operate in solving international problems and in promoting respect for human rights; and to be a center for harmonizing the actions of nations.

The UN Charter refers to human rights in the Preamble and Articles 1, defines one of the objectives of the UN as: promoting and encouraging respect for human rights and for fundamental freedoms for all without distinction as to race, sex, language or religion’.

Article 8 states that ‘the United Nations shall place no restrictions on the eligibility of men and women to participate in any capacity article 8 states that ‘the United Nations shall place no restrictions on the eligibility of men and women to participate in any capacity and under conditions of equality in its principal and subsidiary organs

Article 13 says that the responsibilities, functions and powers of the General Assembly shall include ‘assisting in the realization of human rights and fundamental freedoms for all

Article 55 describes the purposes of the UN in international co-operation, which

include under

(c): ‘universal respect for, and observance of human rights and fundamental freedoms for all without discrimination as to race, sex, language, or religion’.

Article 56 contains a pledge by all members ‘to take joint and separate action in co-operation with the Organization for the achievement of the purposes set forth in Article 55’.

Article 62 contains similar provisions in describing the responsibilities, functions and powers of

THE GENERAL ASSEMBLY



The General Assembly is composed of all member states of the United Nations, each state having one vote. Article 13 UN Charter states that one of the functions of the UN General Assembly is to initiate studies and make recommendations for the purpose of 'promoting international co-operation in the economic, social, cultural, educational and health fields and assisting in the realization of human rights and fundamental freedoms for all without distinction as to race, sex, language or religion'. Accordingly, the UNGA adopted the Universal Declaration on Human Rights (UDHR) on 10 December 1948 and, since then, a number of other human rights instruments.

Most human rights issues that the UNGA deals with are laid out in reports of the Economic and Social Council (ECOSOC) or in resolutions adopted by the UNGA at earlier sessions.

The UNGA refers most issues regarding human rights to its Third Committee, which is responsible for social, humanitarian and cultural issues. The Sixth Committee (Legal Committee) also deals occasionally with human rights issues.

The UNGA has set up a number of subsidiary organs important in relation to human rights: the Special Committee on the Situation regarding Implementation of the Declaration on the Granting of Independence to Colonial Countries and Peoples ('the Special Committee on Decolonization'), the Special Committee to Investigate Israeli Practices Affecting Human Rights of the Population of the Occupied Territories, and the Committee on the Exercise of the

THE ECONOMIC AND SOCIAL COUNCIL (ECOSOC)

In contrast to the UNGA, the Economic and Social Council consists of only 54 members. Article 62 of the UN Charter states that the ECOSOC 'may make recommendations for the purpose of promoting respect for and observance of human rights and fundamental freedoms for all'. The ECOSOC may also submit draft conventions to the UNGA and organize international conferences. Under the provisions of Article 68, the ECOSOC can set up commissions in economic and social fields and for the promotion of human rights. Article 64 empowers the ECOSOC to make arrangements with the UN member states and its Specialized Agencies to obtain reports on the steps taken to put its own recommendations and those of the UNGA into effect.